

LW566E: LAW AND VALUATION

Effective Term

Semester B 2025/26

Part I Course Overview

Course Title

Law and Valuation

Subject Code

LW - Law

Course Number

566E

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

1.5

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

LW5602A Law of Contract I or equivalent. Some courses under this intensive seminar may have specific pre-requisite. Students should refer to the individual course information for details.

Precursors

Nil

Equivalent Courses

LW4662 * Intensive Seminar

(* This being an umbrella course, the course codes of seminars offered under this course will be labelled as LW4662A, LW4662B and so on.)

LW650E* Intensive Seminar

(* This being an umbrella course, the course codes of seminars offered under this course will be labelled as LW650AE, LW650AB and so on.)

Exclusive Courses

Nil

Additional Information

This being an umbrella course, the course codes of seminars offered under this course will be labelled as LW566A, LW566B and so on.

Part II Course Details

Abstract

Please refer to LW566 Intensive Seminars.

Course Intended Learning Outcomes (CILOs)

CILOs	Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1 Describe and explain the basic concepts and principles related to the given seminar			x	
2 Apply the concepts and principles to solve hypothetical or real situations			x	x
3 Communicate ideas, arguments or advice clearly and coherently both orally and in writing		x	x	x
4 Critically analyse and evaluate concepts, principles and policy underpinning the area of law covered by the seminar		x	x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Assessment Tasks / Activities (ATs)

ATs	CILO No.	Weighting (%)	Remarks ("- for nil entry)	Allow Use of GenAI?
1 Attendance and participation in tutorials	1, 2, 3, 4	100	Good attendance (normally 75% plus)	No
Coursework Essay			One essay of 3,000 words to be submitted after completion of the course	

Continuous Assessment (%)

100

Assessment Rubrics (AR)

Part III Other Information

Keyword Syllabus

Course Duration: 7 Seminars

Couse Description: Law and Valuation

This course serves as an introduction for students to the principles and application of valuation in the practice of law. The course will survey, and by the end of the course, students should appreciate how valuation is relevant to the practice of law and various areas of practice (particularly on the law of damages), how valuation is conducted, and how Courts approach the question of valuation as a matter of expert opinion.

Course Objectives

- a. To introduce students to the relevance of valuation to the contentious also non-contentious practices of law.
- b. To provide an understanding of, and to encourage students to critically discuss the cross-disciplinary nature of valuation and its interaction with the practice of law, and as a matter of expert involvement.
- c. To provide an understanding of the principles and approaches of valuation.
- d. To provide an understanding of how valuation is applied in different areas of law.
- e. To provide an understanding of how valuation is approached by the Courts.

Course Outline

- a. Seminars 1 and 2: Introduction
 - a. Contracts, Torts, and Disputes – Theoretical perspective and relevance of valuation to assessing loss and damages, particularly in property and commercial disputes
 - b. Non-contentious Practice – Sale and purchase of property, assets and businesses (M&A) and also in public companies and funds
 - c. Practical perspective – how valuation is engaged in the practice of law, when it is relevant, how it is considered by the Courts, and expert issues
 - d. Legal issues in valuation - E.g. valuation date (date of breach); Difficulties with valuation (unique goods); Available market, etc.
- a. Seminars 3 and 4: Valuation of Land and Buildings:
 - a. How land valuation is conducted – valuation of market value and also market rent;
 - b. Cases which involve land valuation – conveyancing disputes, ownership disputes (including assessing “detriment” in cases of proprietary estoppel), tenancy and mesne profits, compulsory sale, mortgagee sales, tax cases (stamp duty and estate duty),
 - c. Non-contentious practice and land valuation – listing rule compliance and interaction with corporate practice
 - d. Legal issues which arise in land valuation – e.g. lease conditions, planning conditions
 - e. Discussion of valuation in the context of construction and the built environment
- a. Seminar 5: Valuation of Shares and Businesses:
 - a. How share and business valuation is conducted
 - b. Relevance of business valuation in non-contentious corporate practice
 - c. Cases which involve business valuation in contentious practice – unfair prejudice ("fair value" of the Company), family law and ancillary relief (clean break computations)
- a. Seminar 6: "Valuation" in a Broader Context using cases as comparables (1 Seminar):
 - a. Theoretical perspective of valuation and how valuation may be applied by analogy in the broader context
 - b. Valuation of human life in the Personal Injury context - PSLA
 - c. Valuation of sentencing in the criminal context - Sentencing tariffs, starting points, aggravating and mitigating factors (as comparables and adjustment factors)
- a. Seminar 7: Conclusion
 - a. Recap and discussion of key concepts discussed throughout the course; and how valuation is approached by practitioners and the Courts in practice

- b. If time permits and subject to arrangements, guest speaker(s) may be invited to interact with students on discussing the practice and interaction of law and valuation.

Assessment Method

Pass/Fail Grade only

1. Good attendance (normally 75% plus)
2. One essay of 3,000 words to be submitted after completion of the course

Reading List